Gobitis, 310 U. S. 586, 593–594, 596; *Milk Wagon Drivers Union* v. *Meadowmoor Dairies,* 312 U. S. 287, 298–299; *American Federation of Labor* v. *Swing,* 312 U. S. 321, 325–326.

In summary proceedings for contempt by publication, adoption of the actual interference test or the clear and present danger doctrine will conform to *DeJonge* v. *Oregon,* 299 U. S. 353, 364–365, which declared that "legislative intervention can find constitutional justification only by dealing with the abuse. The rights themselves must not be curtailed." Proscribing all comment on judicial proceedings until finally terminated would abridge the right of free speech. However, the right would not be abridged, but its abuse would be dealt with, if comment upon pending judicial proceedings is proscribed only when it is of such a nature and published under such circumstances as to bring about an actual interference, or create a clear and present danger that it will bring about a substantial interference, with the judicial proceedings about which comment is made.

Mr. Allen W. Ashburn, with whom *Messrs. J. H. O'Connor, Wm. B. McKesson,* and *Michael G. Luddy* were on the brief, for respondents.

The determination of what constitutes contempt of a state court, and the character of punishment therefor, are matters exclusively within the control of the State. *Patterson* v. *Colorado,* 205 U. S. 454.

From the standpoint of due process, antiquity of the process is the hallmark of acceptability, whether the matter be viewed adjectively or substantively. If inherent or reasonable tendency to influence or otherwise interfere with the deliberations of a court in a pending matter was an established criterion of constructive contempt at the time of the adoption of the Federal Constitution, its application today can not constitute a denial of due process.